

File No.: EXP202105343

## RESOLUTION OF RECOURSE FOR RECONSIDERATION

Having examined the document submitted by BANCO BILBAO VIZCAYA ARGENTARIA, S.A. (hereinafter, the appellant), whereby it withdraws the recourse for reconsideration filed against the resolution issued by the Director of the Spanish Agency for Data Protection, dated May 6, 2024, and based on the following:

### FACTS

FIRST: On October 12, 2021, a complaint regarding BANCO BILBAO VIZCAYA ARGENTARIA, S.A. was received by this Spanish Agency for Data Protection (hereinafter, AEPD).

SECOND: On May 6, 2024, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202105343. The resolution was notified to the appellant on May 7, 2024, as evidenced in the file.

THIRD: On June 19, 2024, the appellant filed a recourse for reconsideration against the resolution issued in file EXP202105343, expressing disagreement with the contested resolution.

FOURTH: On June 20, 2024, the appellant submitted a document communicating the withdrawal of the recourse for reconsideration filed.

The following legal grounds apply to the above facts:

### LEGAL GROUNDS

#### I

##### Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of the LOPDGDD.

#### II

##### Requirements of the resolution in case of withdrawal

In accordance with the provisions of Article 21.1 of the LPACAP, in the case of withdrawal of the request, the resolution shall consist of the declaration of the circumstance that occurs, indicating the facts produced and the applicable norms.

“1. The Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of how they are initiated.

In cases of prescription, waiver of the right, expiration of the procedure, or withdrawal of the request, as well as the subsequent disappearance of the object of the procedure, the resolution shall consist of the declaration of the circumstance that occurs in each case, indicating the facts produced and the applicable norms. (...)”

#### III

##### Termination of the procedure

Article 84 of the LPACAP includes withdrawal as a means of terminating the procedure, in accordance with the provisions of Articles 93 and 94 of the same law.

“The procedure shall be concluded by resolution, withdrawal, waiver of the right on which the request is based, when such waiver is not prohibited by the legal system, and the declaration of expiration.”

For these purposes, Article 94 of the LPACAP provides as follows:

- “1. Any interested party may withdraw their request or, when not prohibited by the legal system, waive their rights.
2. If the initiation document was submitted by two or more interested parties, the withdrawal or waiver shall only affect those who submitted it.
3. Both the withdrawal and the waiver may be made by any means that allows for their record, provided that they include the corresponding signatures in accordance with the applicable regulations.
4. The Administration shall accept the withdrawal or waiver outright and declare the procedure concluded unless, having been joined by third interested parties, they request its continuation within ten days from the notification of the withdrawal or waiver.
5. If the issue raised by the initiation of the procedure involves general interest or it is advisable to process it for its definition and clarification, the Administration may limit the effects of the withdrawal or waiver to the interested party and continue the procedure.”

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT THE WITHDRAWAL submitted by BANCO BILBAO VIZCAYA ARGENTARIA, S.A. regarding the optional recourse for reconsideration filed against the resolution issued in file EXP202105343.

SECOND: TO DECLARE THE PROCEDURE regarding the optional recourse for reconsideration filed as CONCLUDED.

THIRD: TO NOTIFY this resolution to BANCO BILBAO VIZCAYA ARGENTARIA, S.A.

Against this resolution, which concludes the administrative process, an appeal may be filed within two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of the aforementioned Law.

1055-21112023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](http://sedeagpd.gob.es)